

Building (Energy Efficiency) Regulation
(Cap. 123 sub. leg. M)

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Building (Energy Efficiency) Regulation

(Cap. 123, section 38)

(Enacting provision omitted—E.R. 1 of 2012)

[21 July 1995]

(Format changes—E.R. 1 of 2012)

1. *(Omitted as spent—E.R. 1 of 2012)*

2. Interpretation

In this Regulation, unless the context otherwise requires—

commercial buildings (商業建築物) includes offices, shops, department stores, places of public entertainment, places of public assembly, restaurants and any other buildings used for commercial purposes, but does not include hotels, domestic premises, industrial buildings, schools, car parks, places used for bulk storage and utility buildings such as power stations and sub-stations;

external wall (外牆) means the whole, or any part, of an outer wall of a building and includes a wall adjoining a wall of another building but does not include a wall or part of a wall which is underground; *(16 of 2011 s. 43)*

hotel (旅館) means premises held out as providing sleeping accommodation to any persons presenting themselves who are willing to pay a fee for the sleeping accommodation; *(6 of 2020 s. 47)*

overall thermal transfer value (總熱傳送值) means, as regards a building, the amount, expressed in watts per square metre (W/m^2), of heat transferred through that building envelope

and calculated having regard to factors such as the area of the building envelope, the material used in its construction, thermal properties of the material, orientation of the building, the area of the openings in the building envelope and the shading effect of projections from the building envelope;

refuge floor (庇護層) means a protected floor that serves as a refuge for the occupants of the building to assemble in case of fire.

3. Application

- (1) This Regulation applies to buildings of a class or description specified in the Schedule.
- (2) Where different parts of a building are used for different purposes—
 - (a) this Regulation applies only to those parts which are used as a building described in the Schedule or any purpose ancillary to such use, other than use as a refuge floor or car park; and
 - (b) any reference to **building** (建築物) in this Regulation shall be construed as a reference to those parts.

4. Energy efficiency

- (1) A building to which this Regulation applies shall be so designed and constructed as to achieve energy efficiency to the satisfaction of the Building Authority.
- (2) Without prejudice to the generality of subsection (1), a building shall be regarded as being designed and constructed in compliance with that subsection if its external walls and roofs have a suitable overall thermal transfer value.

5. Information and calculations to be included in building plans

Any plan for building works submitted for the purposes of section 14 of the Ordinance shall include—

- (a) diagrams showing dimensions, colours, arrangements and other details of the building materials to be used for external walls and roofs of the building concerned;
- (b) for each floor, the following information regarding the windows, presented in a tabular form—
 - (i) the number of windows and the size of each window for each orientation;
 - (ii) the thickness of the glass to be used;
 - (iii) the type of glass;
- (c) for composite walls and roofs, particulars of the thermal transmittance value with calculations; and
- (d) a statement and calculations of the overall thermal transfer value of the external walls and roofs of the building.

6. Projections to be disregarded

Notwithstanding anything in regulations 20, 22 and 31 of the Building (Planning) Regulations (Cap. 123 sub. leg. F), any projection from the external wall of a building, being a projection which— (*E.R. 2 of 2018*)

- (a) the Building Authority is satisfied contributes to the achievement of the suitable overall thermal transfer value; and
 - (b) does not project more than 1.5 m from the external wall,
- shall not be taken into account in determining whether the building concerned complies with the requirements of those regulations.

Schedule

[s. 3]

Buildings to which this Regulation Applies

1. Commercial buildings
2. Hotels